

SENATE BILL 1651

By Gardenhire

AN ACT to amend Tennessee Code Annotated, Title 5;
Title 6; Title 7; Title 8; Title 38 and Title 68,
Chapter 102, Part 3, relative to local funding of
public safety departments.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 5, Chapter 17, Part 1, is amended by adding the following as a new section:

5-17-109.

If a county establishes a county-wide fire department pursuant to this chapter, then it is the legislative intent that the governing body of the county direct priority for the appropriation and allocation of county funds, whether from the general fund or other sources of revenue selected under § 5-17-101, to fund the activities of the county-wide fire department. It is further the legislative intent that the county-wide fire department receive appropriations from the county at a level at least equivalent to the level of funding provided by the county for the operation of the sheriff's department.

SECTION 2. Tennessee Code Annotated, Title 5, Chapter 9, Part 1, is amended by adding the following as a new section:

5-9-116.

If a volunteer fire department provides fire protection services to all of a county and its governing board requests funding from the county, then it is the legislative intent that the governing body of the county direct priority for the appropriation and allocation of county funds, whether from the general fund or other sources of revenue, to fund the activities of the volunteer fire department. As used in this section, "volunteer fire department" means a fire department recognized by the state fire marshal's office,

pursuant to § 68-102-304, and classified by the Tennessee Fire Incident Reporting System (TFIRS) as a volunteer fire department.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.